

CHANGING THE GAME? EMBRACING THE ADVOCACY STANDARD

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Intercollegiate debate has always been a game. It is only within the past few decades that the overt claim that it is so has been advanced. While the controversy surrounding the supposed “de-legitimizing” of the activity because of the gaming description has subsided, a new turn in the competitive arena has raised the question once again about the legitimacy of viewing the activity as a game. This essay will evaluate the progression of debate, consider the status of current practice and its implications for the gaming paradigm, and propose an advocacy standard as a means to help resolve some of the existing tensions regarding the clash of argument communities within the activity.

Where Are We at in the Game?

The evolution of debate from persons engaged in argument to being institutionalized in the academic setting has been discussed by Snider. From persons deciding simply what they liked or what is appealing, academic debate instituted a framework for those evaluations to stem from. The first phase of debate placed stock issues at the center of the decision framework. These points of conflict were contested between the affirmative debaters who were required to possess them, and the negative debaters who sought to deny them. The questions of harm and its significance, inherency, solvency, and topicality were issues of presence or non-presence in the establishment of a *prima facie* case. This structure related to the classical rhetorical concept of *stasis*. As presented by Aristotle, and developed further by Hermagoras, the concept deals with arguments in controversies that must be proven. As adapted for debate with the resolution being the controversy, the “stock issues” were central to the content of the debate and were the basis for deciding an outcome.

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The second stage of academic debate began to go beyond the simple question of the presence or non-presence of the stock issues. The affirmative was no longer a set of hoops that had to be jumped through, but a cohesive advocacy for a specific action. With focus shifting to the plan and its outcomes, the affirmative represented more of a system that was being advocated than a static set of circumstances that existed or not. Negatives began to call on judges to compare the world created by the affirmative to the status quo, and compare the costs and benefits of that change. The ideas that there may be a disadvantage to action became a way to acknowledge the presence of the stock issues existing for the affirmative, without conceding that they were sufficient in and of themselves for endorsement. The systems approach enabled the negative to offer up comparative systems that were not part of the status quo through counter plans. The judge could pick between a variety of systems, the affirmative, the status quo, or some non-status quo option advanced by the negative.

This second stage of debate also adopted some elements of hypothesis testing. The affirmative was introduced, and it was the negative's job to falsify affirmative claims. This justified an approach that could challenge the *prima facie* nature of the affirmative, involve defense of the status quo or reluctance to change based in the disadvantage (or multiple disadvantages), and also an aversion toward the status quo with the counter plan (or multiple counter plans). While there was some concern about the negatives ability to offer contradictory positions in the same speech, from the relatively innocuous tension between inherency and the link to the disadvantage to the extreme of multiple contradictory world views expressed through numerous disadvantages and counter plans, the second stage of debate still recognized the existence of the stock issues. This second stage was basically a version of "stock issues plus." Given the huge advantage of preparation afforded to the affirmative, along with the procedural advantage of having the first and last speech, adding to the types of arguments that the negative could offer was generally acceptable. And the issues of contradictory arguments being presented could be debated in the context of any given round where such a strategy was employed.

Is the Game Changing?

Academic debate is now entering a third stage, the critical turn in the activity. The identifying element of this change is that abandonment of the role playing that the construct of *fiat* enabled. In both Stage I and II, the affirmative offered a plan of action that involved the agency of institutions or persons that were not physically present or actually represented by the participants in the debate. Generally a governmental institutional actor was assumed to be the implementer of the plan of action. Debaters pretended to be Congress, or the appropriate body with the power to take the “should” in the resolution into fulfillment with the endorsement of the judge’s decision. Even if they acknowledged that they were not Congress per se, there was a shared assumption that this is what a policy could look like and that we could pretend it was in place to debate its merits or problems.

Critique-style debating (including performance-style debating to broadly cover the turn toward the critical) overtly abandons the traditional view of fiat. It is important to note that it is a particular conceptualization of fiat that is abandoned, not necessarily the construct itself. What is foregone is the inclination to give the affirmative credit for the imagined actions of governmental agents. The only merit that can be valued is that which is developed in the debate itself. “In round” discourse becomes the measured and evaluated content, not the hypothetical actions willed upon non-present actors or agents.

Unlike the transition between Stage I and II, Stage III does not add pieces to the board. Rather, it is a way to remove the pieces of an opponent. Also, either the affirmative or the negative side can deploy this particular strategy, unlike the move from Stage I to II, where only the negative was really expanding their ground. This ongoing transition, or clash of debate conceptualizations, is problematic to those operating under the assumptions of Stage II. Because of the ability for the critique to utilize self-sealing rhetoric to defend itself and indict attack, people challenging the critique feel frustrated in being denied arguments usually available to them. An example lies in a speaker advancing a critique of threat-constructing rhetoric. The counter-speaker argues that not acting is a link to increasing likelihood of conflict. The original speaker can then claim that the “disadvantage” to accepting the idea of not acting on threat-constructive language is proof of how creating scenarios for conflict leads them to happen. The

performance by the counter-speaker is proof enough that conflict-language-based reasoning promotes conflict. The claim of the original speaker to be wary of such errors is the more desirable option. The ever-escalating claims of the counter-speaker of “real world” behavior and “risk analysis” only fuel the strength of the claim of the critique by accounting for such rhetoric and then categorically dismissing it as valid. By not acknowledging the validity of the criticism, the counter-speakers are proving that they don’t “get it” and that they are part of the problem.

The question of what to weigh is central to the conflict. The claim that there is “nothing to weigh” in debate is an existential claim without judgment when advanced by those favoring a critical perspective. “Nothing to weigh” is also advanced as an indictment of the critical perspective by those not favoring the style. For the critic advocate the concept that no real action is taken at the end of the debate means that rather than counting up “dead bodies” or number of nuclear wars, the quality of performance in the round should be evaluated. Conversely, a lack of tangible impacts would make the debate impossible to evaluate for someone who operates under the assumption of real-world fiat being the theory for evaluation.

Additionally, the traditional methods of proof in debate are also open to challenge in Stage III. While approached by some through a performance perspective, others approach alternatives as method, so elements of music, poetry, and narrative, among other forms of communication, are part of a valid examination of the issues of the debate. The use of peer-reviewed, published, authority-based textual evidence is not a privileged form of support for these debaters. In fact, it may be an element under indictment of the criticism being forwarded. This challenge to traditional debate practice produces a strong reaction from those who doubt the value of Stage III-style debate. Perhaps the transition between Stage I and II can be conceptualized as the move from checkers to chess. The nature of what the pieces can do and the number of pieces on the board changed, but the rules of engagement stayed fixed for those acknowledging at the outset what each piece’s function was until the completion of the game. Stage II to III is a move from chess to Dungeons and Dragons. What a piece, or character, or argument, can do now is more dependent on the desires of the player of the game

than on the fixed rules of the game. The ability to nullify an attack or be undamaged by its presence may rely simply on the skillful deployment of changing parameters designed by the player.

It is this changing nature of the rules that frustrates those desiring adherence to Stage II-style debating. In Stage I and II debates the rules may be complicated, but they are relatively constant. There is an orthodox debate behavior in those stages that operates on unwritten rules, but those rules are widely understood.¹ So even though there are no rules in debate but for side relating to speaker order and time of speeches, Stage I and II generally managed to produce debates in which similar evaluative process were used. A situation where a “policy” team is debating a “critique” team with a “policy” judge is not really a concern for the persons embracing a policy approach. It is in those situations where two out of the three are critique-oriented that frustration emerges for those favoring a policy style. Policy teams that must adapt to critique teams and judges, and policy judges that hear critique teams, feel that there is no basis to argue or to decide what has been argued. Conversely, the teams utilizing critical arguments have designed them to interact, and indict, the policy style of presentation and thinking. While critique-favoring teams may not be happy with the outcomes when dealing with policy-oriented teams and critics, they at least have an argument that gives them argumentative ground in those debates. They also are prepared for situations where critical arguments are accepted by the other team or critic.

Judges have the unique situation of dealing with multiple formulations for evaluation in a round wherein there are both policy and critique advocates. In policy rounds, what gets weighed may be in dispute, but not how it gets weighed. In rounds with both argument forms existing, *what* gets weighed is argued along with *how*. There are often competing decision rules that are difficult to implement because both imply that what the other weighs is irrelevant, or the decision rules are never explicitly stated, furthering the lack of clash in the debate.

¹ To say they are unwritten is not literally accurate, given the many textbooks and journal articles dealing with academic debate. But the point is that, except for the ADA and NEDA, the content of debate is remarkably non-regulated by rule.

Some teams have responded to the two styles by incorporating both types of arguments in the same debate. Much like the multiple counter plans and disadvantages that hypo-testing fostered, concern over contradictory arguments is often advanced. Such contradiction also may carry a greater price as the “performance” and in-round discourse of the debaters becomes part of what is assessed in the evaluative framework. Thus, advancing one policy argument that is in tension with another critical argument simultaneously is a more pre-mediated form of error due to the moral weight given the *a priori* nature of the decision calculations for critical arguments.

Who Determines the Rules?

The issue may not be is Stage II giving way to Stage III, but who has control over the content of debate. Do the debaters have control over the content of the debates, or do the judges have *de facto* control? Teams that favor Stage II or III may find themselves in front of a critic that favors the other style. In those cases they can choose to adapt by changing style, modify their style to account for the judge’s preferences, or not change at all. By changing style they may find themselves on unfamiliar ground in terms of presentation or preparation, but they are not forcing the judge to evaluate arguments they do not like. By modifying their style they may be lessening the impact of their arguments or have difficulty in making the incompatible more compatible, but they are showing the judge some desire to adapt and still maintain their preferred arguments. By not adapting they risk wholesale rejection but retain their favored argumentative ground.

Perfect *tabula rasa* behavior by judges is perhaps unrealistic and probably unworkable, as no debate is ever complete in fulfilling all unspoken assumptions. Judges generally evaluate the debate that they given in context to the debate that occurred. In Stage II-style debates, the general assumption of some form of cost-benefit analysis would be the default evaluative paradigm. Arguments that are presented will be weighed in comparison to each other, and the relative advantage or disadvantage of action would guide the outcome. So, in the absence of explicit decision rules or efforts to point the judge to a specific means of analysis, there is very little surprise when the judge acts to compare outcomes in an impact-based

framework. In debates between the Stage II and Stage III frameworks, that default position is no longer available as what is weighed is incompatible, or it may be argued that weighing itself is an irrelevant (fiat is illusory) or undesirable action (violates the assumptions of the given critical argument).

Judges in this position are left to sort out a basis for acting in the context of the round, or by imposing their own paradigm. So who controls the content of the debate, the debaters or the judges? It is easy to see debaters that prefer Stage III debates going on to judge and invoking a Stage III paradigm as their default so the judge has control, but ultimately the judges reflect debater practices by having been debaters themselves. But, for any Stage III change to begin at all, it has to be rewarded by judges who are more familiar with Stage II being persuaded to vote for Stage III teams. It is unlikely that a debater practicing Stage III style debate would continue on in the activity despite never being rewarded by victory. The nature of the transformation from one stage to another will be guided by the success of the debaters advancing the changes. If Stage III style debating never won rounds, no one would practice it, just as counter plans never would have caught on if they did not have argumentative utility that judges were willing to reward with wins. This leads to some irony in that success in the game of debate may be in tension with those in Stage III who see their approach as dismantling the game-based approach.

The End of the Game (Paradigm)?

As debaters and judges are working out the transition or transformation of debate round by round, the question has emerged as to whether Stage III dismantles the gaming paradigm. There are three key points that debaters may make that indicate a break with the assumptions of gaming. None of these ideas are universal for persons advancing critiques or engaging in performance. It is too varied an argumentative landscape to assign a single meaning to the construct. It would be entirely possible to advance critiques and engage in performance firmly within the assumptions of Stage II. It is when argumentative assumptions from Stage III are used to exclude or make irrelevant the assumptions from Stage II that the gap between Stage III and gaming is most apparent.

Critique debaters advance arguments and reasoning that indicates that the line between the real world and debate is as illusory as fiat. Debate does not

automatically increase or decrease anyone's amount of agency. Our capacity to influence the outside world does not change simply with the existence of a debate ballot being filled out. Arguments need to be presented that address the real parameters of agency that exist in the persons in the room. The performance and reasoning of the debaters should be designed to activate the critic as a real person, not someone acting as an umpire between two contestants.

Since debates are evaluated by in-round discourse, those choices now are real and not hypothetical. This has an implication related to the debaters and their relationship to the real world versus the contest at hand. Debaters have responsibility not only for their own rhetoric, but for the rhetoric of the literature they choose to present. In a simple way this is reflected in issues of sexist language: Did the debater, or the evidence they introduced, use sexist language? If there was a sexist use of language, it is resolved and evaluated as part of the in-round discourse. Debate becomes a personal experience with responsibility for discourse that is not dismissed simply because one is speaking as a debater.

In the most direct challenge to the game's requirement of a winner and loser, many Stage III-oriented debaters have abandoned the outcome of the event as well, either by proclaiming that the winner or loser does not matter or simply refusing to employ language that asks for the ballot or to pick a winner and loser. This view has also been forwarded in variations of the dual win, the dual loss, and no decision outcomes as possibilities. Most tournaments now include in their invitations language which indicates that, in the event of a judge assigned to a debate not providing the tabulator with a decision involving one win and one loss to the assigned teams, a procedure of the tabulator's discretion will be employed to assign an outcome, usually implying a random outcome.

The first two challenges really don't invalidate the game's assumptions, just the role of those playing. Having responsibility for discourse and being limited to one's real capacity as an agent might be limitations on how the game is played, but not denial a game is being played. There are factors outside the assumptions about why certain content is valid or not that define debate's game quality. The elements of speech order and time constraints are still contrived aspects of the interaction of "real persons" in a given time and space assignment that is also contrived and not

naturally occurring. Holding one responsible for one's language is also not beyond the realm of the game. The batter ejected from a game for arguing balls and strikes using colorful language quickly realizes that being in a game does not artificially insulate a person from responsibility for statements.

The world of policy technocrats and public decision makers is bound to strict codes of expectation regarding their public statements about constituencies and members of the public. Racist or gender-insensitive comments would not be tolerated by administrators, especially those who see such comments as public liabilities. In the debate context, making sure that all references or literature introduced into the debate are consistent, and that the in-round rhetoric of the debater in explaining the arguments is consistent with the assumptions of the literature, is a parallel expectation.

This consideration of appropriate language based on a moral or ethical rationale is a common part of policy-oriented debate. The critical approach doesn't use evidence to assess such transgressions. What statistical public opinion considers is not as important as the decisions made by the individuals in this debate. Since public policy does not really get enacted as a result of the communication, the consideration of the value of "ends" is irrelevant. Rules of evaluation that measure outcomes as justifications for action are made moot when the judge acknowledges no action occurs or does not pretend to evaluate the debate as someone they are not in terms of endorsing action (as the Federal Government for example). Stage III debate uses its theoretical assumptions to operate as a means to suspend the normal rules of debate behavior and remove items that have usually been weighed in a team's favor to make those items completely irrelevant.

The critical approach not only changes the rules about what is weighed, but it also operates to change the rules of order of consideration. The basis for criticism becomes a means to identify the importance of issues and operates as a special rule that suspends other considerations of merit ("weighing" impacts for instance). This appeal to the "real world" and "real agency" are rhetorical reconstructions of rules to gain access to *a priori* consideration in the debate. This *a priori* status operates as a presumptive function for the team advancing the critique. The appeal to limits of possibilities in the real world, not the game of debate, is a means of making the claim that it is the most accurate reflection of the mirror of nature. But

such an appeal is still just a means of modifying the rules of decision by offering them as non-debatable because they are the true version of the “way things are.” The rationales for endorsement are based on appeals that assume the correctness of the assumptions without the empirical validation required and impossible to even (re)produce in Stage II debates.

The shift from playing a game to making debate “real” also challenges the meaning of participation for the evaluator/critic of the round and for the opposing team. With debate as a game, the critic can step back from her or his own perceptions and truths and make decisions that are based on the arguments in the debate. Often a critic will begin an explanation of a decision with a comment like “I don’t really believe this, or care to endorse this position, but in this debate...”. With the critical turn in debate, often the ballot is not a hypothetical document, but a personal pledge. Judging a debate becomes a transformative experience for such a critic. They are asked to personally embrace a position and to use the ballot to confirm their change of belief. They are no longer detached observer-evaluators, but they are targets of direct personal persuasion. The elimination of the line between the game and the real obliterates the possibility of evaluation along any other means than subjective and personal. The opposing team becomes a target. They are not merely representatives or presenters of a position for consideration in a specific context; they are now conspirators and perpetrators of serious transgressions. The opposition’s choice to advance arguments that are the basis for criticism is indicative of their social and moral failure.

In such a condition debate becomes ideological evangelism. It removes the option of conditional endorsement for the purposes of investigation and testing. The critical turn requires that one abandon contestant status but always assume a publicly accountable identity subject to the scrutiny of others. Such a climate is anti-educational in that it prevents the ability to approach issues from an educational standpoint that allows for experimentation and representation of ideas that are not internalizations of the person advancing them. Debate is no longer a free speech or experimental speech space. Instead, it becomes a moral judgment ground likely to chill discourse and silence exploration of a variety of voices. Debate judges will find a tournament experience to be a series of attempts to alter their worldview and, ultimately, invitations to metaphysical conversion. By

retaining the line between the real world and the game of debate no issues are excluded from discussion, and more are made possible. Responsible advocacy also is possible, and ethical moral transgressions can be addressed as subjects without expanding judgments to the presenters.

The final element of the turn from the game of debate involved in Stage III is the abandonment of attachment to outcome. Quite simply one might ask why such debaters choose to utilize scarce educational resources to actively enter and travel to a competition when they don't care about the outcome. Those debaters seeking activism as an outcome of their debate experience should bypass the debate experience and go be activists. The opportunity to use their free speech rights exist more conveniently and cost effectively on their own campus or in their own community. There is no surprise about what is going to happen at a debate tournament related to competition. It makes more sense for debate to be seen as activism training. Persons are given the opportunity to experiment, train their skills, and receive feedback on their strategies and message. If debaters still want to not be concerned about outcome, it is inappropriate for them to demand that their opposition not be given an outcome as well, or be penalized for seeking an outcome. The process of giving out a decision is not exclusively competitive, but such processes are feedback mechanisms concerned with decision making. Upon entering a tournament there is an agreement that a decision being made is one type of feedback that is guaranteed the participants. They may not get an oral critique after the debate, or comments written on the ballot, but they will receive an indication of a judge's preference in comparison to another opponent.

But what is a judge to do while Stage II and Stage III work out their differences in the rules regarding content evaluation? Most judges are likely to be familiar with Stage II debating. More and more judges are hearing Stage III style teams, and some judges are entering the pool firmly supportive and familiar with Stage III style by having engaged in it actively as a participant. There are likely to be large portions of the policy debate community that will adhere to one camp or the other for quite some time.

The Advocacy Standard and the Game

Debate automatically creates a problematic status for the issue of authenticity. The resolution is artificially constructed as a priority, and even if the resolution is abandoned, the timing of the tournament and rationale for its existence are not externally mandated or related to real-world events. Only occasionally would issues of war or crisis dictate the pre-emption of an event; never has a tournament been held in response to an event. The debaters may also be engaging in an act of speaking for others in their outlining of harms and rationale for action. Also, given the nature of switch-side debating, they may find themselves in a personally uncomfortable assignment to refute a case or strategy they are in agreement with. Yet the debate context requires some representation of “status” to gain access to the decision-making forum. They are assigned a role of proponent or opponent regardless of their concern about the nature of the resolution’s guidance where the debate is concerned. The evaluation of a team’s advocacy can occur without requiring an authentic advocacy, and in competing assumptions about the nature of the resolution, the round, or the activity.

The advocacy standard would ask three main questions: (1) is what the advocate stands for clear (does the advocate take a stand), (2) is the advocate consistent, and (3) does the advocate ethically engage the opposition and critic in the debate. Regardless of the paradigm offered by the teams involved, the advocacy standard can help evaluate two seemingly dissimilar approaches. Even if the two teams in the debate do not seem to be clashing over the ideas in the round, the judge can still make meaningful comparisons between the teams regarding their advocacy. At the end of the debate, rather than trying to weigh competing claims or arguments which in fact may not be in competition, a judge can make a determination of who did the best debating. The requirement of advocacy does require that there be debating done. This may seem in tension with teams offering performance as their form of presentation in the debate. But ultimately, the performance is offered as a form of argument, a reason to select one team over another. The requirement of advocacy does not nullify the act of performance but requires it to fit the context of competitive argument.

Teams that explicitly reject competitive argument should not be concerned with the outcome of a debate to begin with. It seems counterintuitive to critique a

situation that is based on binary outcome and still insist that one should be rewarded with a positive outcome in that system. One cannot say the game is invalid, and then insist that the lack of validity in the game is proof that they should win it. The advocacy standard does not deny the validity of performance; it only requires that those engaging in it advance the underlying argument it embraces openly. If performance is the choice of a debate team to engage an issue brought forward by the resolution, the other team, or of their own choosing, it is their responsibility to provide some context to those who are participants in the discussion. If rapping, or role playing, or poetry are forms to be interpreted as argument, then the person advancing those forms must make clear the claim being made and how it is evaluated.

The reason that debate is seen as a game separate from the real world is mainly that the outcomes of debate have no real impact on the choice or actions of institutions outside of debate. It is seen as a training ground for persons who will seek to influence the public sphere. And while performance is a strategy used to influence the public and policy makers, such as street theater or political satire, there is an accompanying explanation that comes from an organization or movement that gives such actions context. Debaters who engage in performance and fail to provide a context for their argument and explain how it is responsive to issues of concern are failing to complete their persuasion. They risk preaching only to the choir and creating more division and discontent. There is an ethical obligation for the persons engaged in discussion to attempt to engage in dialogue instead of monologue. The persuasive character of performance is its ability to reach out to the other and create mutual understanding. Performance that is used to silence or exclude other views or forms of expression operates at a level where argument is not important, only the hegemonic imposition of meaning with the faith that only one team engaged in performance has the true nature of affairs of the world revealed to them. It closes space for debate and dialogue rather than opening it. It is reasonable for judges who evaluate the speech acts of two different teams to require that the teams engage in a form of discourse that does not exclude the ability to listen equally to either team.

It is fair for the critic of the debate to ask that the teams that are engaged knowingly in a context that has a binary outcome to identify the issues of

importance, how their approach is a basis for making a good decision about that issue, and what distinguishes their choice from the alternative that exists in the other view presented by the opposition. A judge who is asked to make a decision should also feel that game is indeed contestable and not predetermined by the choice of one of the parties involved. As long as debaters choose to voluntarily enter debate tournaments, both policy makers and performers have to openly accept the reality that they are advocates. Neither stance occupies a neutral approach to discourse. And neither stance is automatically privileged by the rules of the game. And neither stance is assisted by ignoring the context of debate as a game with binary outcomes that requires the participants to develop the basis for decision making each round on an ad hoc basis. When a team is debating in front of a critic that operates under the same assumptions as they do, those elements may go unstated in the discourse of the round, but they are still present in the framework that they operate under.

Conclusion

This essay has engaged the ongoing changes in debate and examined current practices in competitive debate. Even as those changes have occurred, the status of debate as a game has not changed. Those that make the claim that debate is about real discourse and that the speech acts in debate are not artificial constructs but real and genuine utterances of real and genuine people still operate in behaviors that perpetuate the game. They seek outcomes that are binary, they attempt to have competitive success, and they have forgone other real and genuine opportunities for discourse to engage in artificially created circumstances to make their utterances. The appeal to be outside the game ends up being a means to exclude other discourse from being evaluated, and to elevate one's discourse above another's. Claims about discourse being more real and genuine ultimately end up being the ultimate expression of a gaming logic, as they alter the rules of the game to ensure only one take on how the game should be played will be considered.

Judges that evaluate the advocacy of the teams and require that they make arguments in the debate, not just expressive or declarative statements, put a fair burden on both teams to address the issues of concern in a meaningful way. It is the act of judging that reinforces that the game is being played. It is reasonable for

the critic to expect that it be played in such a way that both teams have an opportunity for choice in how it played while still ensuring fairness among differing approaches that are on their face incompatible.

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